

CONSULTATION FEE AGREEMENT

REQUIRED DISCLOSURE — TEX. OCC. CODE § 1101.0045. SPC Homes LLC does not hold and will not hold legal title to 3011 Harlan Dr, Mesquite, Texas 75150. SPC Homes LLC holds only an equitable interest under a contract to purchase that property and is offering to sell, assign or release only that equitable interest. SPC Homes LLC is not a licensed real estate broker or sales agent.

Client initials: _____

This Consultation Fee Agreement (this "**Agreement**") is effective as of _____, 20____ (the "**Effective Date**"), or if that blank is left empty, the latest date in the signature blocks below.

CONSULTANT: SPC Homes LLC, a Texas limited liability company, 4742 Benbrook Blvd, Fort Worth, Texas 76116 · 817-697-2534 · info@spchomestx.com ("**Consultant**" or "**SPC**")

CLIENT: _____ Entity type: _____

Address: _____ City/State/ZIP: _____

Phone: _____ Email: _____ ("**Client**")

1. Background and Services

- (a) Client is a real estate investor buying for business or investment purposes, not for personal, family or household use.
- (b) Through its own marketing and research, Consultant located the Subject Property and contracted to buy it for Consultant's own account. Client represents that it did not know the Subject Property was available, and had not contacted its owner, before Consultant disclosed it. If that is not accurate, Client will say so in writing before signing, and either party may then terminate with no fee owed.
- (c) **Services.** Consultant has provided or will provide: identification of the Subject Property; an information package of photos, condition notes and comparable sales; introduction to the record owner (the "**Seller**"); coordination of access and showings; and coordination with the title company through closing (the "**Services**"). Consultant's obligation is to deliver the information it has; it does not guarantee accuracy.

2. Subject Property and Consultant's Position

The "**Subject Property**" is **3011 Harlan Dr, Mesquite, Texas 75150, Dallas County, Texas** — approximately 1,664 sq ft, 3 bed / 2 bath, two-story, built 1963, on roughly 7,200 sq ft, requiring full rehabilitation including roof, HVAC and foundation. Legal description per the title commitment, which controls:

Marketed terms: **\$165,000.00** cash or hard money, strictly AS-IS, closing on or before **September 26, 2026** at Capital Title (the "**Title Company**").

Consultant holds an equitable interest in the Subject Property under a written purchase contract with the record owner dated _____. **Consultant is not the record owner and will not take title.** Consultant will terminate or release that contract at or before closing so that Client contracts and closes directly with Seller, and will deliver a signed release to the Title Company at least five (5) business days before closing. This Agreement is not itself an assignment, and Consultant will not both assign its contract to Client and charge the Consultation Fee.

3. Consultation Fee

- (a) **Amount.** Client shall pay Consultant a flat consultation fee of \$_____ (the "**Consultation Fee**"). The amount is fixed and does not change if the purchase price is renegotiated, and is not measured by the sale price, Client's resale price or Client's profit.

Consultant initials: _____ Client initials: _____

- (b) **Earned and payable.** The Consultation Fee is earned when Consultant releases or transfers its contract position under Section 2, and is **due and payable at closing** of Client's acquisition, **disbursed by the Title Company out of Client's funds** and shown as a line item payable to SPC Homes LLC on the settlement statement.
- (c) **Direction to the Title Company.** Client **irrevocably authorizes and directs** the Title Company to disburse the Consultation Fee to SPC Homes LLC at closing from Client's funds, before any remaining funds are disbursed to Client. This direction is coupled with an interest and may not be revoked without Consultant's written consent.

Client shall sign any closing instruction the Title Company reasonably requires; if Client does not, this Agreement is itself Client's standing instruction and Consultant may deliver a copy to the Title Company. The Title Company's refusal or inability to honor this direction does not excuse Client's obligation to pay.

- (d) **If the Title Company will not disburse.** Client shall instead pay the Consultation Fee by wire or certified funds within one (1) business day after closing. Closing does not extinguish this obligation. Unpaid amounts bear interest at the lesser of 12% per year or the maximum lawful rate, plus costs of collection and reasonable attorney's fees.
- (e) **Non-refundable.** Once earned, the Consultation Fee is not refundable and is not subject to offset or holdback for any reason, including the condition of the Subject Property or Client's rehab costs or resale outcome.
- (f) **Not a commission.** The Consultation Fee is a flat fee for the Services and for Consultant's disposition of its own contract position. It is not a real estate commission, is not a percentage of any price, and is not compensation for representing anyone in a real estate transaction. It is not charged to or paid by Seller.

4. No Brokerage; No Agency

Consultant is **not** a licensed real estate broker or sales agent, does not hold itself out as one, and provides no brokerage services. Consultant is **not** the agent, fiduciary or representative of Client or Seller, and owes no fiduciary duty. Consultant acts as an independent contractor and principal in its own economic interest, and profits from this transaction — which Client acknowledges. Consultant does not provide legal, tax, financial, appraisal, inspection or investment advice, and any ARV, spread, repair estimate or comparable figure is a non-binding illustration, not an appraisal or a promise.

5. AS-IS; Client's Own Diligence

- (a) All information Consultant provides — square footage, beds and baths, year built, lot size, price, value or resale figures, repair scope, roof, HVAC, foundation and structural condition, taxes, liens, title and survey matters — comes from sources believed reliable but is **NOT guaranteed or warranted**. Client shall verify everything at its own expense.
- (b) The Subject Property is sold strictly **AS-IS, WHERE-IS, WITH ALL FAULTS. CONSULTANT MAKES NO WARRANTY, EXPRESS OR IMPLIED, INCLUDING ANY WARRANTY OF CONDITION, HABITABILITY, MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.**
- (c) **Client is not relying on any representation, estimate or statement by Consultant that is not written in this Agreement.** Client relies solely on its own inspection, investigation and advisors. Consultant's total liability under this Agreement will not exceed the Consultation Fee actually received.

Client initials: _____

6. Non-Circumvention

- (a) For **twenty-four (24) months** after the Effective Date, neither Client nor any Covered Person shall acquire, contract to acquire, option or take title to the Subject Property except in a closing at which the full Consultation Fee is paid to Consultant. Nothing here stops Client from dealing directly with Seller — the obligation is to pay the fee if Client acquires the property.
- (b) "**Covered Person**" means Client and its affiliates, principals, members, officers, employees, agents, family members, lenders, capital and joint-venture partners, assignees, nominees, entities under common control or formed by or for Client, and **anyone to whom Client discloses the Subject Property**. Client is responsible for their compliance.
- (c) Without limiting subsection (a), this Section is triggered by closing in a different entity or name; letting a contract lapse and re-contracting within the period; restructuring or repricing with Seller so the fee is not paid in full; a person Client told about the deal acquiring it; or Client's lender or partner acquiring it instead of Client.
- (d) On breach, the full Consultation Fee is **immediately due as a debt** for Services already rendered — not as liquidated damages or a penalty — with interest at the rate in Section 3(d), plus costs of collection and reasonable attorney's fees. Consultant may also seek injunctive relief. This Section survives closing and termination for its full term.
- (e) Consultant will not record this Agreement or any memorandum or lien based on it in the real property records.

7. Confidentiality

Client shall keep the Seller's identity and contact information and the deal terms confidential and shall not disclose them except to its own advisors, lender and closing agent, who are bound by this Section.

8. If the Transaction Does Not Close

If Client's acquisition does not close for any reason **other than** Client's default or a breach of Section 6, no Consultation Fee is owed and Consultant has no claim for it. Consultant bears the risk that a sourced deal dies through no fault of Client. If closing fails because of Client's default or refusal to close on agreed terms, or if Section 6 is breached, the full Consultation Fee is immediately due as a debt under Section 6(d).

9. General

- (a) **Texas law** governs. Venue lies in Tarrant County (where payment is due) or Dallas County (where the Subject Property is located).
- (b) The prevailing party in any action to enforce this Agreement may recover reasonable attorney's fees and costs.
- (c) Client may not assign this Agreement without Consultant's written consent; Consultant may assign its right to the Consultation Fee.
- (d) Client was advised to have its own attorney review this Agreement before signing and had a fair opportunity to do so. This Agreement was negotiated at arm's length and will not be construed against either party as drafter.
- (e) This Agreement, with its disclosures, is the entire agreement on its subject and supersedes prior negotiations and marketing materials. It may be amended only in a writing signed by both parties. Nothing here waives any disclosure required by law.
- (f) If any provision is unenforceable, it will be reformed to the minimum extent necessary or severed, and the rest stays in force. Sections 3, 4, 5, 6, 7, 8 and 9 survive closing and termination.
- (g) This Agreement may be signed in counterparts. Signatures delivered by PDF, scan, email or e-signature platform are binding under the Texas Uniform Electronic Transactions Act and the federal E-SIGN Act.
- (h) Each person signing represents that he or she is authorized to bind the party for whom he or she signs.

SIGNATURES

CONSULTANT — SPC HOMES LLC

By: _____ Printed name: _____

Title: _____ Date: _____

CLIENT

Entity name (if any): _____

By: _____ Printed name: _____

Title: _____ Date: _____

AUTHORIZATION TO TITLE COMPANY

TO: Capital Title (or successor closing agent) — GF / File No.: _____

RE: 3011 Harlan Dr, Mesquite, Texas 75150, Dallas County, Texas

The undersigned Client irrevocably authorizes and directs the Title Company to disburse a consultation fee of \$_____ to **SPC Homes LLC** at closing of Client's acquisition of the above property, from Client's funds, before disbursement of any remaining funds to Client, and to show it as a line item on the settlement statement. The Title Company is further authorized to deliver copies of the draft and final settlement statement to SPC Homes LLC and to communicate directly with SPC Homes LLC about that disbursement. If the amount above is blank or differs from Section 3(a) of the Consultation Fee Agreement, the Section 3(a) amount controls. This direction is coupled with an interest and may not be revoked without the written consent of SPC Homes LLC.

Client signature: _____ Date: _____

Printed name: _____ Title: _____

Acknowledged — Title Company (requested; refusal to sign is not a condition to closing and does not excuse the fee)

By: _____ Date: _____